

		Plaintiff did not file an opposition to this motion. As this is the second pleading challenge that Plaintiff has failed to oppose, and there are no allegations against Defendant, the Court GRANTS Defendant's motion to strike the entirety of the SAC as to William R. O'Connell III, an individual, without leave to amend. <u>Motion to Dismiss</u> In light of this Court's ruling on the motion to strike, the Motion to Dismiss is MOOT. The Case Management Conference is continued to September 10, 2026 at 1:30 p.m. <i>Moving Defendant to prepare a judgment of dismissal and to give notice.</i>
104	Dunchok vs. AIC Owner, LLC, 25-01489145	Defendants AIC Owner LLC and Sarah Tolentino ("Defendants") move pursuant to Code of Civil Procedure section 425.16(c)(1) for \$22,836.50 in attorneys' fees and \$123.54 in costs, for a total award of \$22,960.04. Plaintiff James M. Dunchok ("Plaintiff"), proceeding in proper, opposes the motion. Plaintiff asks the Court to deny the "motion in its entirety or, in the alternative, award only a nominal amount of fees apportioned solely to the successful portions of the Anti-SLAPP motion." First, Defendants request for judicial notice of the Minute Order on Defendants' anti-SLAPP Motion entered by the Court in this action on March 9, 2026 is GRANTED. Code of Civil Procedure section 425.16 is the anti-SLAPP motion statute. Section 425.16(c) discusses attorney's fees following an anti-SLAPP motion. Section 425.16(c) states: "(c)(1) Except as provided in paragraph (2), in any action subject to subdivision (b), a prevailing defendant on a special motion to strike shall be entitled to recover that defendant's attorney's fees and costs. If the court finds that a special motion to strike is frivolous or is solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney's fees to a plaintiff prevailing on the motion, pursuant to Section 128.5. (2) A defendant who prevails on a special motion to strike in an action subject to paragraph (1) shall not be entitled to attorney's fees and costs if that cause of action is brought pursuant to Section 11130, 11130.3, 54960, or 54960.1 of the Government Code, or pursuant to Chapter 2 (commencing with Section 7923.100) of Part 4 of Division 10 of Title 1 of the Government Code. Nothing in this paragraph

		shall be construed to prevent a prevailing defendant from recovering attorney's fees and costs pursuant to Section 7923.115, 11130.5, or 54960.5 of the Government Code." (Code Civ. Proc., § 425.16, subd. (c).) "The anti-SLAPP statute entitles a prevailing anti-SLAPP movant in most cases to recover his or her attorney fees and costs as of right." (<i>Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.</i> (2022) 73 Cal.App.5th 764, 773, review denied (Apr. 13, 2022); <i>Tukes v. Richard</i> (2022) 81 Cal.App.5th 1, 16 "[T]he statutory predicate for a fee award under the anti-SLAPP statute is that the defendant prevailed on its motion."].) "The term 'prevailing party' must be 'interpreted broadly to favor an award of attorney fees to a partially successful defendant.' " (<i>City of Colton v. Singletary</i> (2012) 206 Cal.App.4th 751, 782.) "However, a fee award is not required when the motion, though partially successful, was of no practical effect." (<i>Ibid.</i>) "[A] party who partially prevails on an anti-SLAPP motion must generally be considered a prevailing party unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion." (<i>Ibid.</i>) "The determination whether a party prevailed on an anti-SLAPP motion lies within the broad discretion of [the] trial court." (<i>Ibid.</i>) Unless the results of the anti-SLAPP Motion were so insignificant that defendant achieved no "practical benefit" from it, partial success entitles a defendant to attorney's fees. (<i>Mann v. Quality Old Time Service, Inc.</i> (2006) 139 Cal.App. 4th 329, 340 (Mann); <i>Moran v. Endres</i> (2006) 134 Cal.App.4th 952, 954.) Moreover, "[t]he anti-SLAPP fee award statute applies only to those fees incurred in connection with the anti-SLAPP motion (including a related motion for fees and costs), not those incurred in other aspects of the action." (<i>Tukes v. Richard</i> (2022) 81 Cal.App.5th 1, 15.) Once the Court determines that the party moving for fees is the prevailing party, the Court must determine the amount of fees to award. "A trial court has discretion to award less than the fee amount requested where work performed was duplicative." (<i>Tukes v. Richard</i> (2022) 81 Cal.App.5th 1, 16.) "[C]ourts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom." (<i>Tukes v. Richard</i> (2022) 81 Cal.App.5th 1, 17.) "It is well settled that the trial courts are to use the lodestar method when determining an award of attorney fees under
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		the anti-SLAPP statute.” (<i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613, 620.) “This approach ensures that the trial court’s analysis is objective and that the amount awarded is not arbitrary. (<i>Id.</i> at 620–621.) “Under the lodestar method, the trial court ‘tabulates the attorney fee touchstone, or lodestar, by multiplying the number of hours reasonably expended by the reasonable hourly rate prevailing in the community for similar work.’ ” (<i>Id.</i> at 621.) “The lodestar figure ‘may be increased or decreased depending on a variety of factors, including the contingent nature of the fee award.’ ” (<i>Frym v. 601 Main Street LLC</i> (2022) 82 Cal.App.5th 613, 621.) “Indeed, the trial court has discretion to determine the amount of reasonable fees to award based on ‘a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work.’ ” (<i>Ibid.</i>) Notably, “[a]nti-SLAPP motions are ‘intended to resolve quickly and relatively inexpensively meritless lawsuits that threaten free speech on matters of public interest.’ ” (<i>Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.</i> (2022) 73 Cal.App.5th 764, 773, review denied (Apr. 13, 2022).) Here, the Court finds that Defendants partially prevailed on their anti-SLAPP motion. The Court granted the anti-SLAPP motion as to the first cause of action based on threatening legal action in 2022, an alleged misrepresentation after serving the five-day notice, entering the property as part of the five-day notice and prior to commencing eviction proceedings, and pursuing eviction as well as the second cause of action for frustration of purpose in leasing property and intentional interference with prospective economic advantage and third cause of action for wrongful eviction, which were based on the same or similar protected communications in connection with an ongoing dispute and in anticipation of litigation. (ROAs 36 and 38.) Defendants’ motion was denied, however, as to first cause of action for breach of implied covenant based on the alleged failure to renegotiate as promised and the failure to repair the leaking roof. With the remaining cause of action for breach of implied covenant based on the alleged failure to renegotiate as promised and the failure to repair the leaking roof, Plaintiff’s possibility for recovery against Defendants remains. Although, the scope of the facts at issue are now narrowed after the anti-SLAPP motion and Plaintiff has less bases for the relief requested.
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105	Clicktide Digital Corporation vs. VPP Technologies, Inc, 25-01521849	<i>Off-calendar.</i>
106	Harris vs. City of Irvine, 25-01529084	Respondents City of Irvine, Irvine Police Department, Kailene Loza, in her official capacity as Lead Records Specialist, and Adrianna Medina, in her official capacity as Program Specialist ("Respondents") demur to the Petition for Writ of Mandate filed by petitioner Sonia Patricia Harris ("Petitioner") for failure to state a cause of action. As an initial matter, the Court notes that Respondents' moving papers were served on Petitioner by electronic service only. As a pro se litigant, papers must be served on Petitioner by mail unless Petitioner affirmatively agrees otherwise. Because Petitioner has filed a timely, substantive opposition to the moving papers, the Court finds any